

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #11	CCRB Case #: 201601193	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 02/08/2016 4:10 PM	Location of Incident: University Avenue and Merriam Avenue; the 44th Precinct stationhouse	Precinct: 44	18 Mo. SOL 8/8/2017	EO SOL 8/8/2017	
Date/Time CV Reported Tue, 02/09/2016 12:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/12/2016 11:10 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			044 PCT
2. POM Calvin Black	01730	948676	044 PCT
3. An officer			044 PCT
4. POM Daniel Maria	22210	954096	044 PCT
5. LT Enrique Rodriguez	00000	895928	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Gabriel Diaz	00588	925411	044 PCT
2. SGT Antonia Giordano	5133	940193	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Enrique Rodriguez	Abuse: At University Avenue and Merriam Avenue in the Bronx, Lieutenant Enrique Rodriguez stopped § 87(2)(b)	
B.POM Calvin Black	Abuse: At University Avenue and Merriam Avenue in the Bronx, Police Officer Calvin Black stopped § 87(2)(b)	
C.POM Daniel Maria	Abuse: At University Avenue and Merriam Avenue in the Bronx, Police Officer Daniel Maria stopped § 87(2)(b)	
D. Officers	Discourtesy: At University Avenue and Merriam Avenue in the Bronx, officers spoke discourteously to § 87(2)(b)	
E. An officer	Force: At University Avenue and Merriam Avenue in the Bronx, an officer used a chokehold against § 87(2)(b)	
F. An officer	Force: At University Avenue and Merriam Avenue in the Bronx, an officer restricted § 87(2)(b)'s breathing.	
G. Officers	Abuse: At the 44th Precinct stationhouse, officers strip-searched § 87(2)(b)	
H. An officer	Abuse: At the 44th Precinct stationhouse, an officer damaged § 87(2)(b)'s property.	

Case Summary

On February 9, 2016, Sgt. Gabriel Diaz of the 44th Precinct called the Internal Affairs Bureau (IAB) Command Center to report that § 87(2)(b) alleged that officers used force against him during his arrest. The complaint was forwarded to the CCRB under IAB original log number 16-4590, where it was received on February 12, 2016.

On February 8, 2016, at approximately 4:10 p.m., § 87(2)(b) walked past a bodega located at 1361 Ogden Avenue in the Bronx, near the intersection of University Avenue and Merriam Avenue. The previous day, this bodega was robbed at gun point by two individuals (Board Review 01). As § 87(2)(b) walked by the bodega, three plainclothes officers—Lt. Enrique Rodriguez, PO Daniel Maria, and PO Calvin Black, all of the 44th Precinct—were inside the bodega, investigating the previous day’s armed robbery. The two suspects of the armed robbery remained unapprehended.

Lt. Rodriguez, PO Maria, and PO Black exited the bodega and stopped § 87(2)(b) (**Allegations A through C**). § 87(2)(b) alleged that Lt. Rodriguez, PO Maria, and PO Black each grabbed his wrists or arms and forced him to his knees (subsumed within Allegations A through C). § 87(2)(b) asked what was happening and said he had not done anything wrong. § 87(2)(b) alleged that unidentified officers—he was not sure which ones—told him to “get the fuck down” (**Allegation D**). § 87(2)(b) alleged that as he lay on his stomach, an unidentified officer—he was not sure which one—placed a knee on the side of his neck, causing his breathing to become restricted for approximately two seconds (**Allegations E and F**).

Video surveillance footage from the bodega captured the stop and apprehension of § 87(2)(b) a SnagIt copy of which has been placed below. The original videos may be found at Board Reviews 04 through 07, and a summary of the video footage may be found at Board Review 08.



201601193_20161013_1417_DM.mp4

§ 87(2)(b) was eventually secured in handcuffs, transported to the 44th Precinct stationhouse, and placed in a holding cell. § 87(2)(b) alleged that approximately seven unidentified officers ordered him to remove all his clothing, and he complied (**Allegation G**). § 87(2)(b) alleged that an unidentified officer used a knife to cut the lining of his jacket (**Allegation H**). Upon his request, § 87(2)(b) was screened by EMS and transported to the hospital.

§ 87(2)(b) was ultimately charged with § 87(2)(a) 160.50
(Board Review 02). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)]
[§ 87(2)(b)]

This case was originally assigned to Investigator Erin Sweeney. It was reassigned to Investigator Ben Gilmore on June 23, 2016, following Investigator Sweeney’s departure from the agency.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED].
- Although § 87(2)(b) has retained a civil attorney, he had not filed a Notice of Claim with the New York City Comptroller's Office as of September 20, 2016 (Board Review 10).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 11).
- Lt. Rodriguez has been a member-of-service for 27 years, and he has been the subject of 37 previous CCRB allegations, two of which were substantiated. § 87(2)(g)
[REDACTED]
 - In CCRB 200711784, a 'premises entered and/or search' allegation was substantiated. The CCRB recommended Command Discipline B, and the NYPD imposed this discipline. In CCRB 201410644, a 'stop' allegation was substantiated. The CCRB recommended charges, but the NYPD disposition is unknown.
- PO Black has been a member-of-service for six years, and he has been the subject of five previous CCRB allegations, one of which was substantiated. § 87(2)(g)
[REDACTED]
 - In CCRB 201200442 a 'refusal to provide name/shield number' allegation was substantiated. The CCRB recommended charges, but the NYPD imposed no penalty.
- PO Maria has been a member-of-service for three years, and this is his first CCRB complaint.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) (Board Review 12) alleged that officers—he was not sure which ones—spoke discourteously to him when he was initially approached. It is undisputed that Lt. Rodriguez, PO Black, and PO Maria were the sole officers who initially approached § 87(2)(b). Lt. Rodriguez (Board Review 13), PO Black (Board Review 14), and PO Maria (Board Review 15) each denied speaking discourteously to § 87(2)(b) and each denied hearing any other officer do so. § 87(2)(g)
[REDACTED].

§ 87(2)(b) alleged that after he was forced to the ground, an officer—he was not sure which one—placed their knee on his neck, causing his breathing to become restricted for a couple of seconds. No officer interviewed acknowledged doing this, or seeing any officer do this. Video footage captures the approximate eight-minute apprehension of § 87(2)(b) § 87(2)(b) can be

seen resisting by turning his body over and pushing off with his legs, as the officers grab § 87(2)(b)'s arms and place their knees on his legs, back, and chest. Because the vantage point of the video is from above, and the officers largely stand over § 87(2)(b) the video footage does not indicate who, if anyone, placed their knee on § 87(2)(b)'s neck. § 87(2)(g)

§ 87(2)(b) alleged that in a holding cell at the 44th Precinct stationhouse, approximately seven uniformed officers—he was not sure which ones—ordered him to remove his clothing, and he complied. A civilian prisoner, § 87(2)(b) (Board Review 22), indicated that § 87(2)(b) was led to the rear of the stationhouse by approximately 10 officers, but he did not see what happened after that point. No officer interviewed, including either desk sergeant—Sgt. Gabriel Diaz (Board Review 23) and Sgt. Antonia Giordano (Board Review 24) of the 44th Precinct—indicated that they strip searched § 87(2)(b) or witnessed any other officer do this. There was no reference to a strip search in § 87(2)(b)'s arrest report, in the command log (Board Review 16), or in the memo book of his arresting officer (Board Review 17). § 87(2)(g)

§ 87(2)(b) alleged that an officer—he was not sure which one—cut the lining of his jacket. No officer interviewed by the CCRB acknowledged cutting the lining of § 87(2)(b)'s jacket, seeing any other officer do this, or being aware that this had occurred. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: At University Avenue and Merriam Avenue in the Bronx, Lieutenant Enrique Rodriguez stopped § 87(2)(b)

Allegation B – Abuse of Authority: At University Avenue and Merriam Avenue in the Bronx, Police Officer Calvin Black stopped § 87(2)(b)

Allegation C – Abuse of Authority: At University Avenue and Merriam Avenue in the Bronx, Police Officer Daniel Maria stopped § 87(2)(b)

It is undisputed that Lt. Rodriguez, PO Black, and PO Maria stopped § 87(2)(b) for the sole reason that they believed he was one of two individuals who robbed a bodega at gun point the day prior. It is undisputed that § 87(2)(b) walked past this bodega while Lt. Rodriguez, PO Black, and PO Maria were investigating the previous day's robbery. The three officers were looking at surveillance video and speaking with employees inside the bodega.

Although it is undisputed that Lt. Rodriguez called the other two officers' attention to § 87(2)(b) Lt. Rodriguez, PO Black, and PO Maria each indicated that they believed § 87(2)(b) resembled one of the two perpetrators of the armed robbery. Each officer indicated that the description of the perpetrator was solely gleaned from the bodega surveillance video. Lt. Rodriguez said that § 87(2)(b) height, weight, and skin-tone resembled one of the perpetrators. PO Black testified that § 87(2)(b)'s face was “remarkably” similar to one of the perpetrator's—however, PO Black indicated that the faces of the perpetrators were obscured in the surveillance

video. PO Black also testified that § 87(2)(b)'s height and weight resembled one of the perpetrators, but he was unable to estimate the height or weight of either perpetrator. PO Maria testified that § 87(2)(b) resembled the perpetrator "just that he's a black male, in that age range, with an athletic build."

§ 87(2)(b) showed the bodega's surveillance video footage of the armed robbery. The bodega video footage indicates that there was no specific resemblance between § 87(2)(b) (Board Review 18) and either of the two perpetrators (see video below).



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A still photograph of the surveillance video depicts the two perpetrators of the armed robbery (Board Review 19), neither of whom appear to specifically resemble § 87(2)(b).

An officer may not stop an individual based on a vague description, even if the stop occurred approximately 15 minutes after the alleged crime and in the vicinity of the alleged crime. People v. Riddick, 269 AD2d 471 (2000) (Board Review 20). In Riddick, the description characterized as vague was a black male wearing a black jacket.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Discourtesy: At University Avenue and Merriam Avenue in the Bronx, officers spoke discourteously to § 87(2)(b)

Allegation H – Force: At University Avenue and Merriam Avenue in the Bronx, an officer used a chokehold against § 87(2)(b)

Allegation I – Force: At University Avenue and Merriam Avenue in the Bronx, an officer restricted § 87(2)(b)'s breathing.

Allegation J – Abuse of Authority: At the 44th Precinct stationhouse, officers strip-searched § 87(2)(b)

Allegation K – Abuse of Authority: At the 44th Precinct stationhouse, an officer damaged § 87(2)(b)'s property.

§ 87(2)(g)

_____.

Squad: 11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date